

**SUBSTITUTE FOR
HOUSE BILL NO. 4720**

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
by amending sections 795 and 795a (MCL 168.795 and 168.795a),
section 795 as amended by 2018 PA 127 and section 795a as amended
by 1998 PA 215.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 795. (1) ~~An~~**Subject to subsection (2), an** electronic
2 voting system acquired or used under sections 794 to 799a must meet
3 all of the following requirements:

4 (a) Provide for voting in secrecy, except in the case of
5 voters who receive assistance as provided by this act.

6 (b) Utilize a paper ballot for tabulating purposes.

7 (c) Permit each elector to vote at an election for all ~~persons~~



1 **individuals** and offices for whom and for which the elector is
2 lawfully entitled to vote; to vote for as many ~~persons~~**individuals**
3 for an office as the elector is entitled to vote for; and to vote
4 for or against any question upon which the elector is entitled to
5 vote. Except as otherwise provided in this subdivision, the
6 electronic tabulating equipment must reject all choices recorded on
7 the elector's ballot for an office or a question if the number of
8 choices exceeds the number that the elector is entitled to vote for
9 on that office or question. Electronic tabulating equipment that
10 can detect that the choices recorded on an elector's ballot for an
11 office or a question exceeds the number that the elector is
12 entitled to vote for on that office or question must be located at
13 each polling place and programmed to reject a ballot containing
14 that type of an error. If a choice on a ballot is rejected as
15 provided in this subdivision, an elector must be given the
16 opportunity to have that ballot considered a spoiled ballot and to
17 vote another ballot.

18 (d) Permit an elector, at a presidential election, by a single
19 selection to vote for the candidates of a party for ~~president,~~
20 ~~vice-president,~~**President, Vice President**, and presidential
21 electors.

22 (e) Permit an elector in a primary election to vote for the
23 candidates in the party primary of the elector's choice. Except as
24 otherwise provided in this subdivision, the electronic tabulating
25 equipment must reject each ballot on which votes are cast for
26 candidates of more than 1 political party. Electronic tabulating
27 equipment that can detect that the elector has voted for candidates
28 of more than 1 political party must be located at each polling
29 place and programmed to reject a ballot containing that type of an



1 error. If a choice on a ballot is rejected as provided in this
2 subdivision, an elector must be given the opportunity to have that
3 ballot considered a spoiled ballot and to vote another ballot.

4 (f) Prevent an elector from voting for the same ~~person~~
5 **individual** more than once for the same office.

6 (g) Reject a ballot on which no valid vote is cast. Electronic
7 tabulating equipment must be programmed to reject a ballot on which
8 no valid vote is cast.

9 (h) Be suitably designed for the purpose used; be durably
10 constructed; and be designed to provide for safety, accuracy, and
11 efficiency.

12 (i) Be designed to accommodate the needs of an elderly voter
13 or ~~a person~~ **an individual** with 1 or more disabilities.

14 (j) Record correctly and count accurately each vote properly
15 cast.

16 (k) Provide an audit trail.

17 (l) Provide an acceptable method for an elector to vote for a
18 ~~person~~ **an individual** whose name does not appear on the ballot.

19 (m) Allow for accumulation of vote totals from the precincts
20 in the jurisdiction. The accumulation software must meet
21 specifications prescribed by the secretary of state and must be
22 certified by the secretary of state as meeting these
23 specifications.

24 (n) Be compatible with or include at least 1 voting device
25 that is accessible for an individual with disabilities to vote in a
26 manner that provides the same opportunity for access and
27 participation, including secrecy and independence, as provided for
28 other voters. The voting device must include nonvisual
29 accessibility for the blind and visually impaired.



(2) Except as otherwise provided in this subsection, an electronic voting system acquired on or after January 1, 2026, and approved by the board of state canvassers under section 795a, must not include any parts or equipment produced or provided by an entity that has any covered communications equipment or service listed on the Federal Communications Commission's website as required under 47 USC 1601. The approval of an electronic voting system by the board of state canvassers under section 795a is not negated if the entity that has any covered communications equipment or service listed on the Federal Communications Commission's website is added to the Federal Communications Commission's website after the electronic voting system was approved by the board of state canvassers under section 795a. As used in this subsection, "covered communications equipment or service" means that term as defined in 47 USC 1608.

(3) ~~(2)~~—Electronic tabulating equipment that counts votes at the precinct before the close of the polls must provide a method for rendering the equipment inoperable if vote totals are revealed before the close of the polls. Electronic tabulating equipment that tabulates ballots, including absentee ballots, at a central location must be programmed to reject a ballot if the choices recorded on an elector's ballot for an office or a question exceed the number that the elector is entitled to vote for on that office or question, if no valid choices are recorded on an elector's ballot, or if, in a primary election, votes are recorded for candidates of more than 1 political party.

(4) ~~(3)~~—Each jurisdiction in this state conducting an election shall equip each polling place with at least 1 accessible voting device as required under subsection (1)(n).



1 Sec. 795a. (1) ~~An~~ **Subject to subsection (10), an** electronic
 2 voting system ~~shall~~ **must** not be used in an election unless ~~it~~ **that**
 3 **electronic voting system** is approved by the board of state
 4 canvassers as meeting the requirements of sections 794 and 795 and
 5 instructions regarding recounts of ballots cast on that electronic
 6 voting system that have been issued by the secretary of state,
 7 unless section 797c has been complied with, and unless ~~it~~ **that**
 8 **electronic voting system** meets 1 of the following conditions:

9 (a) Is certified by an independent testing authority
 10 accredited by the ~~national association~~ **National Association** of
 11 ~~state election directors~~ **State Election Directors** and by the board
 12 of state canvassers.

13 (b) In the absence of an accredited independent testing
 14 authority, is certified by the manufacturer of the voting system as
 15 meeting or exceeding the performance and test standards referenced
 16 in subdivision (a) in a manner prescribed by the board of state
 17 canvassers.

18 (2) The vendor or representative seeking approval of an
 19 electronic voting system ~~shall~~ **must** do all of the following:

20 (a) Deposit with the secretary of state a nonrefundable
 21 application fee of \$1,500.00 for a new **electronic** voting system and
 22 a fee of \$500.00 for an upgrade to any existing **electronic voting**
 23 system.

24 (b) File with the secretary of state a list of all states in
 25 which the **electronic** voting system has been approved for use. This
 26 list ~~shall~~ **must** state how long the **electronic voting** system has
 27 been used in the state and ~~shall~~ **must** disclose any reports compiled
 28 by any state or local government concerning the performance of the
 29 **electronic voting** system. The vendor ~~shall remain~~ **remains**



1 responsible for filing this information on an ongoing basis.

2 (c) File with the secretary of state copies of all standard
3 contracts and maintenance agreements used in connection with the
4 sale of the **electronic** voting system. All changes to standard
5 contracts and maintenance agreements ~~shall~~**must** be filed with the
6 secretary of state.

7 (d) Pay the cost for any field test required by the board of
8 state canvassers.

9 (e) State the number of voters each component of the
10 **electronic** voting system can process per hour under each of the
11 following circumstances:

12 (i) An election in which there are 10 or fewer items to be
13 voted on the ballot by each voter.

14 (ii) An election in which the ballot consists of the number of
15 items typically voted on at a presidential general election in this
16 state.

17 (3) The board of state canvassers shall conduct a field test
18 of all new **electronic** voting systems as part of the certification
19 process. The field test ~~shall~~**must** involve ~~Michigan~~ electors **of**
20 **this state** and election officials in simulated election day
21 conditions. The test ~~shall~~**must** be designed to gauge voter reaction
22 to the **electronic voting** system, problems that voters have with the
23 **electronic voting** system, and the number of voting stations
24 required for the efficient operation of an election based upon the
25 vendor's statement provided under subsection (2) (e).

26 (4) ~~The~~**Subject to subsection (10), the** board of state
27 canvassers shall approve an electronic voting system for use in
28 this state only if ~~it~~**that electronic voting system** meets the
29 conditions of subsection (1) except that in an emergency situation



1 that threatens the ability of a county, city, or township to
 2 conduct a scheduled election, the board of state canvassers may
 3 approve a correction of software or firmware after testing the
 4 software or firmware performance.

5 (5) If an electronic voting system is approved for use before
 6 January 1, 1997 by the board of state canvassers, ~~it that~~
 7 **electronic voting system** may be used in an election. However, if
 8 the electronic voting ~~system has its~~ **system's** software or firmware
 9 **is** improved or changed, the **electronic voting** system ~~shall must~~
 10 comply with the requirements of subsection (1).

11 (6) After an electronic voting system is approved, an
 12 improvement or change in the electronic voting system ~~shall must~~ be
 13 submitted to the board of state canvassers for approval ~~pursuant to~~
 14 **under** this section. This subsection does not apply to the technical
 15 capability of a general purpose computer, reader, or printer to
 16 electronically record and count votes.

17 (7) A county, city, township, village, or school district
 18 shall file ~~"an intent~~ **an "intent** to purchase statement" with the
 19 secretary of state 30 days before any purchase agreement is made to
 20 purchase a new **electronic** voting system. The secretary of state
 21 shall provide all information concerning the operation of the
 22 **electronic** voting system in ~~Michigan~~ **this state** or any other state
 23 to the local unit of government within 25 days after receiving the
 24 "intent to purchase statement".

25 (8) The secretary of state shall instruct local election
 26 officials regarding the operation and use of an approved electronic
 27 voting system in order to carry out the purposes of sections 794 to
 28 799a and the rules promulgated ~~pursuant to~~ **under** sections 794 to
 29 799a.



1 (9) If the board of state canvassers determines that an
2 electronic voting system that was approved under subsection (1) no
3 longer meets the requirements described in that subsection, the
4 board of state canvassers may disapprove that **electronic** voting
5 system. ~~An~~ **Subject to subsection (10), an** electronic voting system
6 that has been disapproved by the board of state canvassers under
7 this subsection ~~shall~~ **must** not be used in an election, unless ~~it~~
8 **that electronic voting system** is reapproved by the board of state
9 canvassers under subsection (1).

10 (10) **For an electronic voting system acquired on or after**
11 **January 1, 2026, the board of state canvassers shall not approve**
12 **that electronic voting system if that electronic voting system**
13 **includes any parts or equipment produced or provided by an entity**
14 **that has any covered communications equipment or service listed on**
15 **the Federal Communications Commission's website as required under**
16 **47 USC 1601. This subsection does not prohibit the approval of an**
17 **improvement or change to an approved electronic voting system under**
18 **subsection (6) or the repair, maintenance, or acquisition of**
19 **components necessary for the proper operation of an electronic**
20 **voting system that was acquired and approved before January 1,**
21 **2026. As used in this subsection, "covered communications equipment**
22 **or service" means that term as defined in 47 USC 1608.**